Questions for Your Review — Matter 44

Ngwa Nforbi v. [Employer] (Delta Hotels Santa Clara) · N.D. Cal., San Jose · Private work product · Prepared Nov. 12, 2026 · Goes with the Nov. 12 complaint draft

How to use this. Answer only what is true, in your own words. A "No" or "I don't remember" is fine and useful. Every highlighted sentence in the complaint draft is tied to one of these questions, and nothing highlighted stays in the complaint until you confirm it. Priority: BEFORE FILING means filing waits on the answer. IMPORTANT means it strengthens the complaint. HELPFUL means it helps later in the case.

Why accuracy matters more than helpfulness here. You will be asked these same questions under oath at deposition. One case, *Olea* (N.D. Cal. 2023), lost standing because the plaintiff's deposition showed he understood the form. A true "no" now is far better than a "yes" that falls apart later.

A. Your understanding of the background-check form (complaint ¶ 13(b) and (d))

This is what keeps the case in federal court. Courts require **your own** confusion or lack of informed consent, not a general claim that consumers would be confused (*Syed*; *Michaeli*; *Winters*). Each sentence below is a separate proposed allegation, so answer each one separately.

A1 **When you signed on Sept. 22, did you understand that the form let the hotel get background reports on you "throughout my employment," not just once before you started?** BEFORE FILING

☐ I did NOT understand that ☐ I understood it ☐ Not sure

_____

A2 **Did you understand that it released "without reservation" "any and all background information" from law enforcement and others?** BEFORE FILING

☐ Did NOT understand ☐ Understood ☐ Not sure

_____

A3 **Did you know what sources would be searched (for example, court records or sex-offender registries)?** BEFORE FILING

☐ Did NOT know ☐ Knew ☐ Partly. Explain below.

_____

A4 **Did you know you had a right to a free copy of the report?** BEFORE FILING

☐ Did NOT know ☐ Knew

A5 **If you had been given a clear, separate disclosure explaining all of this, would you still have signed an authorization covering your entire employment "without reservation"?** BEFORE FILING

☐ No, I would not have signed it as written ☐ Yes, I would have signed anyway ☐ Not sure

If you answer "No," what would you have done instead? For example: signed for pre-hire only, asked questions first, or declined.

_____

_____

A6 **Which of these would you actually have done if you had received the disclosure? Check only the true ones.** BEFORE FILING

☐ Asked what would be searched ☐ Objected to any use of Megan's Law website information ☐ Requested a copy of the report ☐ Other (below)

_____

A7 **Did anyone explain the background check to you, in person, by phone, or by email (Denet, John, Universal Background Screening, Indeed)? Did you complete anything online for it (a QR code, Paychex, any portal)?** IMPORTANT

You already said you saw no disclosure screen. This asks whether anyone told you anything about the check.

_____

_____

A8 **Have you ever received from anyone a copy of the background report, a "pre-adverse action" notice, or a "summary of your rights" under the FCRA in connection with Delta?** IMPORTANT

☐ Never ☐ Yes. What and when:

_____

B. Howell's role, and what he knew (complaint ¶¶ 17, 26; Count Four)

This is the new risk from your research. *Miller v. T-Mobile* (N.D. Cal. 2025) refused to hold an employer liable through a coworker who wasn't a supervisor. We need facts showing Howell had real **authority to evaluate you** and that his view actually reached Barros. A threat to report you is not enough on its own.

B1 **Who assigned Howell to train you, and what were you told about his role? Exact words, if you remember them.** BEFORE FILING

B2 **Did Howell sign off on tasks, keep a checklist or training log, or grade your work?** BEFORE FILING

☐ Yes ☐ No ☐ Don't know

B3 **Did you ever see or hear Howell report on your progress to John Barros or Celia Rodarte (texts, calls, shift log, email, in person)? When and how?** BEFORE FILING

B4 **Did anyone say Howell would decide, or recommend, when you were ready to work Night Audit alone?** IMPORTANT

B5 **Did Howell ever mention Megan's Law, a registry, a website, any detail of your offense, your parole, or your ankle monitor? Did anyone else at the hotel?** BEFORE FILING

This is the single most valuable fact for proving *where* the information came from. A detail that appears on the website but not on you would change the case. Also answer "no" if that is the truth.

B6 **Are these two quotations your word-for-word memory, or the substance of what he said?** BEFORE FILING

> *"…If you ask me again, I'm reporting this incompetence to John."*

☐ Word for word ☐ In substance

> *"…I don't know why John keeps wasting time and money training you."*

☐ Word for word ☐ In substance

Approximate dates or shifts for each:

B7 **Have you seen Howell and Barros communicate about anything, for example the High Balance screenshot emails, texts, or calls during shifts?** HELPFUL

C. Employer, records, and requests

C1 **What legal name and address appear in the employer field of your Paychex wage statement (Oct. 16 or later)?** BEFORE FILING

This becomes the defendant's name in the caption and ¶ 2. A screenshot of the top of the stub is enough; the bank details can be blacked out.

C2 **Are you still employed at Delta? What does your schedule look like after Nov. 14 (the Nov. 15–21 roster, if posted)?** BEFORE FILING

C3 May I finalize the request for your consumer file from Universal Background Screening (15 U.S.C. § 1681g) for you to send? BEFORE FILING

Recommendation: yes. It shows what was searched and who received the report. Counts Two and Four cannot be pleaded without it, and it strengthens ¶ 13(c). Nothing is sent without your approval.

☐ Yes, finalize for my signature ☐ Not yet

C4 May I finalize the request to the hotel for your personnel file, payroll and time records, and signed documents (Lab. Code §§ 1198.5, 226, 432)? IMPORTANT

Recommendation: yes. The hotel must respond within 30 and 21 days. The punch records answer the 37-minute question, and payroll replaces the roster estimates.

☐ Yes ☐ Not yet

D. Attendance details

D1 Nov. 2: what time did you call Howell before your 11:01 p.m. text? Did he answer? What did you say? Please screenshot your phone's call log for that evening. IMPORTANT

This tests whether Howell is the person who told Barros you were ill. Barros wrote that he "heard."

D2 Which night was the 37-minute late arrival, and what time did you actually arrive? IMPORTANT

☐ Nov. 3 (Uber, back roads) ☐ Nov. 4 (turned back for notes) ☐ Not sure

D3 Any other late arrival, early departure, or absence that is not in the texts? IMPORTANT

Anything the hotel knows that the complaint leaves out will be used to attack your credibility. Better to plead it ourselves.

E. Damages: income, rent, and how this has affected you

E1 Since Sept. 22, 2026, have you earned wages of any kind from anyone other than Delta (any job, gig, or staffing agency)? BEFORE FILING

☐ No. Delta is my only earned income. ☐ Yes:

E2 Rent: to whom do you pay the $90/day, and how often (daily, weekly, monthly)? Do you have a lease, a rental agreement, or receipts? IMPORTANT

E3 Any late notice, late fee, or message from your landlord since Nov. 1? Any housing cost you've already had to pay because of the lost shifts? IMPORTANT

E4 In your own words, how has the loss of shifts and the risk to your housing affected you? Sleep, appetite, concentration, daily life. When did it start? IMPORTANT

Your own testimony can be enough (*Newton v. Equilon*, N.D. Cal.). No medical records are needed, and none will be claimed unless they exist.

E5 Has anyone (family, friend, roommate) noticed how this has affected you, and would they be willing to say so? First name or relationship only for now. HELPFUL

Courts give more weight to distress testimony when someone else backs it up.

E6 **If you accept a new job (Lincare, Sysco, ABM, or another), tell me the start date, hours, and pay. Any earnings in the hours Delta took away are subtracted from the lost-wage claim.** HELPFUL

F. Filing choices

F1 **Caption name: BRENDAN NGWA NFORBI (also known as BRENDAN NGEHSI NEWANFORBI), matching your employment records and Matters 38–43. Is that OK?** IMPORTANT

☐ Yes ☐ Use instead:

F2 **Timing: file Counts One and Three (disclosure claims) as soon as Sections A, C1, and E1 are answered, or wait for the Universal Background Screening file so all four counts go in together?** BEFORE FILING

Recommendation: wait for the file if it arrives within about 45 days. The FCRA and ICRAA deadlines run to Sept. 22, 2028. The conservative § 290.46 date is Oct. 13, 2027. Filing once, with the report in hand, avoids an early motion to dismiss on the weaker counts.

☐ Wait for the file ☐ File Counts One and Three now

F3 **Do you want to consent to a magistrate judge, or decline? (No penalty either way.)** HELPFUL

☐ Consent ☐ Decline ☐ Discuss

F4 **Filing fee: pay it, or apply to proceed without paying (IFP)?** HELPFUL

An IFP filing is screened for failure to state a claim before it is served (28 U.S.C. § 1915(e)(2)). That is one more reason to have Sections A and B answered first.

☐ Pay ☐ IFP